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PUBLISHING ADMINISTRATION AGREEMENT

The following shall constitute an agreement ("Agreement") on this the ____ day of _____, 20____ between _____ ("Writer") and _____ ("Administrator") with respect to an exclusive publishing administration agreement between Writer and Administrator.

1. **TERM:**

(a) The initial term ("Initial Term") of this Agreement shall commence on the date hereof and shall continue for an Initial Contract Period ending twelve (12) months from the date of this Agreement.

(b) This Agreement shall be renewed for _____ (_____) twelve (12) month periods automatically unless Administrator shall give written notice of termination to Writer not later than thirty (30) days prior to the expiration of the Initial Term or the then current renewal period, as applicable, subject to the terms and conditions in this Agreement.

2. **TERRITORY:** The World ("Territory").

3. **SCOPE OF AGREEMENT:** Administrator shall have and is hereby granted the sole and exclusive right throughout the Territory to administer and exploit the compositions ("Compositions") listed on Schedule "A" and any Compositions written during the term of this Agreement to print, publishing, sell, dramatize, use and license the use of the Compositions, to execute in its own name any and all licenses and agreements whatsoever affecting or respecting the Compositions, including but limited license for mechanical reproduction, public performance, public performance, dramatic uses, synchronization uses and subpublication, and to assign or license such rights to others. Administrator shall have the exclusive right, during the term of this Agreement, to use the name, image, likeness and biographical material of any Writer of a Composition without payment of additional compensation to Administrator.

4. **COLLECTION OF INCOME:** Administrator is entitled to receive and collect and shall receive and collect all gross receipts derived from the Compositions. "Gross Receipts" is defined as any and all revenue, income and sums derived and actually received by Administrator in the United



States (after deduction of any collection or other fees charged by The Harry Fox Agency, Inc., or any other such collection agent which may be used by Administrator anywhere in the United States and Canada, and after deduction of any collection fee or share of royalties charged by any collection agent or subpublisher used by Administrator outside the United States and Canada) from the exploitation of the Compositions, including without limitation, mechanical royalties, synchronization fees, dramatic use fees, printing income and the publisher's share of public performance fees. In the event Administrator or Administrator's subsidiaries or affiliates in the United States or Canada shall print and sell any printed editions of any of the Compositions, Gross Receipts with respect thereto, for the purposes of this Agreement, shall be deemed to be a royalty on the net paid sales of each printed edition, which royalty shall be equal to the then current royalty generally being paid by print licensees in the United States to unrelated music publishers.

5. **ROYALTIES/ NET INCOME SHARE** : Administrator shall pay to Writer royalties of one hundred percent (100%) of the net income received by Administrator on behalf of Writer for the Compositions,

(a) "Net Income" is defined as the gross receipts less the following:

(i) An administration fee of fifteen percent (15%) of the gross receipts, which Administrator shall retain for Administrator's own account;

(ii) Royalties which shall be paid by Administrator to any other writers of the Compositions pursuant to any songwriter's agreements between Writer and any such other writers (true copies of which latter agreements shall be submitted by Writer to Administrator promptly upon execution thereof).

(iii) Administrative and exploitation expenses of Administrator with respect to the Compositions including, without limitation, copyright registration fees, advertising and promotion expenses directly related to the Compositions, the costs of transcribing for lead sheets, and the costs of producing demonstration records.

(iv) Attorneys' fees, if any, actually paid by Administrator for any agreements (other than the within Agreement) affecting solely the Compositions or actual and reasonable out-of pocket audit and litigation collection expenses.

6. **COLLECTION OF PERFORMANCE ROYALTIES:**

(a) Small performing rights in the Subject Compositions, to the extent permitted by law, shall be assigned to and licensed by the performing rights society ("Society") to which both parties belong. Said society shall be and is hereby authorized to collect and receive all monies earned from the public performance of the Subject Compositions in the United States and Canada. Writer shall receive his/her respective writer's share of performance royalties directly



from his/her respective Society. Writer authorizes Administrator to collect and directs Writer's Society to pay directly to Administrator the entire amount allocated by Writer's Society as the publisher's share of public performance fees for the SC(s) for the United States and Canada.

(b) Writer agrees to execute a letter of direction or assignment or such other documents to which shall effectuate the provisions of this paragraph subject to Writer's performance rights societies requirements for such assignment. Writer shall sign and deliver to Administrator copies of said letter simultaneously herewith.

7. **COLLECTION OF MECHANICAL ROYALTIES:** Mechanical royalties for the Compositions for the United States and Canada may be collectible by The Harry Fox Agency, Inc. or any other collection agent which may be designated by Administrator, provided, however, that Administrator shall, in the case of any record company in the United States or Canada affiliated with Administrator, issue the mechanical licenses directly to said record company at the then current statutory rate (with such reduced rates for special types of sales or distribution for which Administrator customarily grants reduced rates to nonaffiliated record companies) and collect mechanical royalties directly therefrom.

8. **SUBPUBLISHING AGREEMENTS:** Administrator may enter into subpublishing or collection agreements with, and license or assign this Agreement and any of its rights hereunder and delegate any of its obligations hereunder to, any persons, firms or corporations in the Territory. If Administrator is or shall be a party to any subpublishing, collection or administration agreement for any country of the world with a subsidiary or affiliate, such agreement shall be deemed to be an agreement with an unrelated third party and, for the purposes of this Agreement, such agreement shall be deemed to be on a basis no less favorable to Administrator than an agreement providing for the Writer to receive fifty percent (50%) of the mechanical royalties computed at the source, fifty percent (50%) of public performance royalties computed at the source and ten percent (10%) of suggested retail selling price on printed editions.

9. **ACCOUNTING:** Statements as to royalties payable hereunder shall be sent by Administrator to Writer on or before the thirtieth day of September of the semi-annual period ending the preceding June 30, and on or before the 31st day of March for the semi-annual period ending the preceding December 31st, together with payment of accrued royalties, if any, earned by Writer hereunder during such semi-annual period, less all Expenses and charges under this Agreement.

a) No royalties shall be payable to Writer by any of Administrator's licensees until payment therefore has been received by Administrator or credited to Administrator's Account. Royalties payable by any such licensees shall be deemed to have occurred in the semi-annual accounting period during which such licensees shall have rendered to Publisher accounting statements for such sales.

b) Royalties received or credited to Administrator's account outside of the United States shall be computed in the national currency in which Administrator is paid by Administrator's



licensees, shall be credited to Writer's royalty account hereunder at the same rate of exchange as Administrator is paid, and shall be proportionately subject to any transfer or comparable taxes which may be imposed upon Administrator's receipts. In the event Administrator shall not receive payment in United States dollars in the United States in respect thereof such payment shall not be credited to Writer's royalty account hereunder.

c) Administrator shall maintain books of account concerning the sale of Records hereunder. Writer, or a certified public accountant, in Writer's behalf, may, at Writer's sole expense, examine Administrator's said books (relating to the sale of Records hereunder) solely for the purpose of verifying the accuracy thereof, only during Administrator's normal business hours and upon reasonable written notice.

10. **RIGHT TO PROSECUTE CLAIMS:** Administrator shall have the sole right but not the obligation to prosecute, defend, settle and comprise all suits and actions respecting the Compositions, and generally to do and perform all things necessary concerning the same and the copyrights therein, to prevent and restrain the infringement of copyrights or other rights with respect to the Compositions, In the event of the recovery by Administrator of any monies as a result of a judgment or settlement, such monies shall be divided between Writer and Administrator in the same shares as provided in clause 5 above, after first deducting the expenses of obtaining said monies, including counsel fees, and paying any necessary share thereof to Composer or any other writers. Writer shall have the right to provide counsel for Writer, but at Writer's own expense, to assist in any such matter. Any judgments against Administrator and any settlements by Administrator of claims against Writer respecting any of the Compositions, together with costs and expenses, including counsel fees, shall be covered by the indemnity provisions of paragraph 12 hereof, and Writer's indemnity payment thereunder shall be paid to Administrator promptly upon demand and may also be recouped by Administrator from any and all sums that may become due to Writer hereunder.

11. **WARRANTIES and REPRESENTATIONS:**

(a) Writer hereby warrants and represents that it has the right to enter into this Agreement and to grant to Administrator any rights granted herein, and that the exercise by Administrator of any and all rights with respect to the Compositions will not violate or infringe upon any common law or statutory rights of any person, firm or corporation, including without limitation, contractual rights, copyrights and rights of privacy. The rights granted herein are free and clear of any claims, demands, liens or encumbrances. Writer acknowledges that Administrator has the right to administer and publish compositions other than Writer's Compositions.

(b) The rights of the parties hereto in and to each Composition shall extend for the full term of the copyright of said Composition and of any derivative copyrights therein the United States of America and throughout the rest of world and for the terms of any and all renewals or extensions thereof in the United States of America and throughout the rest of the Territory.



(c) The parties hereto shall execute any further documents including without limitation, assignments of copyrights, and do all acts necessary to fully effectuate the terms and provisions of this Agreement..

12. **INDEMNIFICATION:** Both Administrator and Writer agree to and do hereby indemnify, save and hold each other harmless of and from any and all loss and damage (including reasonable attorney's fees) arising out of or connected with any claim by any one or more third parties or any act by each other which is inconsistent with any of the warranties, representations, and/or agreements made by each party herein, and agrees to reimburse each other on written demand for any reasonable payment made by either party at any time with respect to any liability or claim to which the foregoing indemnity applies. Pending the determination of any claim involving such alleged breach or failure, Administrator may withhold sums due Writer hereunder in an amount consistent with such claim.

13. **CURE OF BREACH:** Neither party will be deemed in breach unless the other party gives notice and the notified party fails to cure within 30 days after receiving notice (15 days, in the case of a payment of money); provided, that if the alleged breach does not involve a payment of money and is of such a nature that it cannot be completely cured within 30 days, the notified party will not be deemed to be in breach if the notified party commences the curing of the alleged breach within such thirty-day period and proceeds to complete the curing thereof with due diligence within a reasonable time thereafter. However, either party shall have the right to seek injunctive relief to prevent a threatened breach of this Agreement by the other party. All payments required to be made by Administrator hereunder shall be subject to any rights and/or remedies which may otherwise be available to Administrator in the event of a breach of this Agreement on Writer's part not cured in the manner prescribed above, and to any withholding which may be required by the rules and regulations of any taxing jurisdiction having authority.

14. **NOTICES and CONSENTS:**

(a) Notices shall be sent registered or certified mail (return receipt requested) postage, prepaid to Writers and to Administrator at the following addresses until written notice of a new address shall be duly given:

To Writer:

To Administrator:

(b) Statements (and payments, if applicable) shall be sent by regular mail.



(c) Where the consent or approval of a party is required, it shall not be unreasonably withheld (unless expressly provided otherwise herein) and shall be deemed given unless the party whose consent or approval has been requested delivers notice of nonconsent or disapproval to the other party within fifteen (15) days after receipt of notice requesting such consent or disapproval.

15. **ENTIRE AGREEMENT:** This Agreement sets forth the entire understanding between the parties, and cannot be changed, modified or cancelled except by an instrument signed by the party sought to be bound.

16. **LAW AND FORUM:** This Agreement has been entered into in, and is to be interpreted in accordance with the laws of, the State of _____. All actions or proceedings seeking the interpretation and/or enforcement of this Agreement shall be brought only in the State or Federal Courts located in _____ County in the State Of _____, all parties hereby submitting themselves to the jurisdiction of such courts for such purpose.

17. **MISCELLANEOUS:**

(a) Nothing contained herein shall constitute a partnership between or a joint venture by Administrator and Writer.

(b) If any provision of this Agreement shall be declared invalid, same shall not affect the validity of the remaining provisions hereof.

(c) No waiver of any provision of this Agreement or of any default hereunder shall affect the waiving party's rights thereafter to enforce such provision or to exercise any right or remedy in the event of any other default, whether or not similar.

(d) In the event more than one writer is party to this Agreement the Writer's obligations under this Agreement are joint and several. All references to "Writer" include all members of the group collectively and each member individually, unless otherwise specified herein.

The effective date of this Agreement shall be the first date written above.

Administrator:

By: _____



Writer's Name

Soc. Sec. # _____

Address: _____
